

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Senior District Judge Richard P. Matsch**

Date: March 15, 2010
Courtroom Deputy: J. Chris Smith
FTR Technician: Kathy Terasaki

Civil Action No. 08-cv-00996-RPM

KATHY D. CRUZ and
RAMON L. CRUZ,

George E. McLaughlin

Plaintiffs,

v.

CHRISTOPHER R. COLE, M.D.

Deanne C. McClung

Defendant.

COURTROOM MINUTES

Trial to Jury Day 1

8:26 a.m. Court in session.

Plaintiffs and defendant present.

Court's preliminary remarks and states its trial procedures.

8:30 a.m. Jurors present.

Court's introductory remarks and statement of the case to jurors.

All jurors sworn for voir dire.

Eighteen jurors called to the jury box.

8:52 a.m. Court voir dices jurors.

Court excuses for cause jurors:

100186407
100175778
100177934

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10:26 a.m. to 10:27 a.m. **Bench conference:** Counsel pass jurors for cause.

Plaintiffs' challenges:

100194261
100191468
100174793

Defendant's challenges:

100187927
100185670
100165820

Twelve jurors selected to try the case:

100168475
100180282
100189723
100196822
100166015
100169457
100161070
100164908
100173638
100160627
100184491
100174823

Court instructs jurors.
Jurors excused.

10:42 a.m. Court in recess.
11:07 a.m. Court in session.

Jurors present.

Twelve jurors sworn to try the case.

11:12 a.m. Plaintiffs' opening statement by Mr. McLaughlin.

11:49 a.m. Defendant's opening statement by Ms. McClung.

Court instructs jurors.
Jurors excused.

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Discussion regarding scheduling.

12:16 p.m. Court in recess.
1:28 p.m. Court in session.

Jurors present.

1:33 p.m. Plaintiffs' witness, Sameer Oza, M.D., sworn.

Direct examination of Mr. Oza by Mr. McLaughlin.

Plaintiffs' Exhibits 16, 5 (pgs 106, 107) and 3 (pgs. 584, 585, 586, 590, 594, 597, 598, 599, 600, 602 and 601) identified, offered and received.
Plaintiffs' Exhibit 5 pg. 108 offered and defendant's objection sustained.

2:33 p.m. Cross examination of Mr. Oza by Ms. McClung.

Defendant's Exhibits L-4, A-3 (pgs 92, 93) and A-2 (pgs 437, 438, 494, 495, 579 and 603-607) identified, offered and received.
Reference to Defendant's Exhibit 583 (not offered).

Court instructs jurors.
Jurors excused.

Discussion regarding Defendant's Exhibit A-2 (**redact insurance reference**).

3:36 p.m. Court in recess.
3:50 p.m. Court in session.

Jurors present.

3:51 p.m. Continued cross examination of Mr. Oza by Ms. McClung.

4:02 p.m. Redirect examination of Mr. Oza by Mr. McLaughlin.

Plaintiffs' Exhibit 5 (pg. 108) identified, offered and received.

Court instructs jurors regarding deposition transcripts.

4:10 p.m. Deposition of Frank Mazzola, M.D. read.

Plaintiffs' Exhibit 27 identified, offered and received.

Court instructs jurors.
Jurors excused.

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Discussion regarding scheduling.

4:35 p.m. Court in recess.

Clerk's note: Redacted strike sheet attached and original retained pursuant to General Order 2007-3

Trial continued. Total time: 6 hrs. 57 min.